

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olubukola Ajayi	Team: Team # 4	CCRB Case #: 201014536	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/19/2010 4:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/19/2012	Precinct: 09		
Date/Time CV Reported Tue, 10/19/2010 11:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/22/2010 2:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Silverio	23765	943816	009 PCT
2. POM Frank Kurys	27761	938799	009 PCT
3. POM Sergio Delamota	18344	943137	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Kurys	Abuse: PO Frank Kurys stopped § 87(2)(b)	A . Unsubstantiated
B . POM Sergio Delamota	Abuse: PO Sergio Delamota stopped § 87(2)(b)	B . Unsubstantiated
C . POM Frank Kurys	Abuse: PO Frank Kurys threatened § 87(2)(b) with the use of force.	C . Exonerated
D . POM Sergio Delamota	Abuse: PO Sergio Delamota searched § 87(2)(b)	D . Unsubstantiated
E . POM Frank Kurys	Abuse: PO Frank Kurys frisked § 87(2)(b)	E . Exonerated
F . POM Sergio Delamota	Abuse: PO Sergio Delamota threatened to arrest § 87(2)(b) and § 87(2)(b)	F . Alleged Victim Unavailable
G . POM Daniel Silverio	Abuse: PO Daniel Silverio threatened to arrest § 87(2)(b)	G . Complaint Withdrawn

Case Summary

§ 87(2)(b) filed the following complaint at the 9th Precinct on October 19, 2010 (encl.). On the same date, PO Michelle Salowski of the 9th Precinct referred the complaint to IAB's command center. The complaint (original IAB log # 10-52234) was referred to the CCRB on October 22, 2010 (encl.).

At about 4:10 p.m. on October 19, 2010, § 87(2)(b) was stopped by PO Frank Kurys, PO Sergio Delamota and PO Daniel Silverio in front of § 87(2)(b) in Manhattan. The following resulted from the officers' actions:

- **Allegation A – Force:** PO Frank Kurys stopped § 87(2)(b)
- **Allegation B – Force:** PO Sergio Delamota stopped § 87(2)(b) § 87(2)(g)
§ 87(2)(b) it is recommended that **Allegations A and B** be closed as **unsubstantiated**.
- **Allegation C– Abuse of Authority:** PO Frank Kurys threatened § 87(2)(b) with the use of force. § 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

- **Allegation D– Abuse of Authority:** PO Daniel Silverio searched § 87(2)(b) § 87(2)(g)
§ 87(2)(b), it is recommended that **Allegation D** be closed as **unsubstantiated**.
- **Allegation E– Abuse of Authority:** PO Frank Kurys frisked § 87(2)(b) § 87(2)(g)
§ 87(2)(b), it is recommended that **Allegation E** be closed as **Exonerated**.
- **Allegation F – Abuse of Authority:** PO Sergio Delamota threatened to arrest § 87(2)(b) and § 87(2)(b) § 87(2)(g) the CCRB recommends that **Allegation F** be closed as **victim unavailable**.
- **Allegation G – Abuse of Authority:** PO Daniel Silverio threatened to arrest § 87(2)(b) § 87(2)(g)
§ 87(2)(b) the CCRB recommends that **Allegation G** be closed as **complaint withdrawn**.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)
§ 87(2)(b) is a § 87(2)(b) white male who is § 87(2)(b) and has brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed on November 1, 2010 (encl. 9.1-9.11). He provided phone statements to the CCRB on October 27 and November 17, 2010, and on June 23, 2011. § 87(2)(g)

At about 4:10 p.m. on October 19, 2010, § 87(2)(b) was walking through Tompkins Square Park as he headed to his apartment building, located at § 87(2)(b) in Manhattan. He did not speak or interact with anyone as he walked through the park from § 87(2)(b) to § 87(2)(b) § 87(2)(b) passed by a bald-headed white male plainclothes officer (identified as PO Kurys), a plainclothes black male officer (identified as PO Delamota) and a plainclothes Hispanic male officer (identified as PO Silverio) on his way to his apartment building. When § 87(2)(b) walked through the front door of his apartment building, PO Kurys and PO Delamota grabbed him from behind by his arms and shoulders, and pulled him out of the building. § 87(2)(b) who thought he was

being mugged, pressed the buzzers to the apartments in the building and screamed for help as he was being pulled out of the building. PO Kurys and PO Delamota placed § 87(2)(b)'s arms behind him. Two seconds later, PO Silverio arrived, coming from the direction of Tompkins Square Park. PO Kurys handcuffed § 87(2)(b) and PO Delamota showed § 87(2)(b) his silver-colored badge, which had a pen behind it and hung from a string that was around his neck. PO Delamota also identified himself, PO Kurys, and PO Silverio as police officers. PO Kurys and PO Delamota pulled § 87(2)(b) down to the street level and placed him chest-first on top of the hood of a car that was parked in front of his building.

Some minutes later, § 87(2)(b) § 87(2)(b) § 87(2)(b) daughter) and § 87(2)(b) § 87(2)(b) § 87(2)(b)'s babysitter, who was also one of § 87(2)(b)'s neighbors) arrived on the scene. PO Kurys held a can of mace in front of § 87(2)(b)'s face and accused § 87(2)(b) of not complying as § 87(2)(b) lay on top of the parked car. PO Delamota lifted § 87(2)(b)'s shirt and looked at § 87(2)(b)'s back. PO Delamota searched and removed the following items from § 87(2)(b)'s pants pockets and placed them on the car: a comb, a pack of chewing gum, a wallet, and some loose change. PO Delamota also removed a Leatherman (a multifunctional tool that has an inch and a half blade and screw driver in it, which § 87(2)(b) uses on his job and on his bike) from a cell phone pouch that was strapped to § 87(2)(b)'s belt. At this point, § 87(2)(b) § 87(2)(b) § 87(2)(b)'s husband) and § 87(2)(b) (one of § 87(2)(b)'s neighbors) exited from § 87(2)(b)'s building. § 87(2)(b) asked § 87(2)(b) and § 87(2)(b) to call 911. PO Kurys put away the can of mace and showed § 87(2)(b) his badge and the weapon that was strapped to his waist band. PO Kurys went through § 87(2)(b)'s wallet and patted § 87(2)(b)'s waistline. PO Kurys did not search § 87(2)(b)'s pockets. A short argument occurred in Spanish between PO Silverio, § 87(2)(b) and § 87(2)(b) § 87(2)(b) did not know what PO Silverio, § 87(2)(b) and § 87(2)(b) were saying to each other because he did not understand Spanish. At some point, PO Delamota told § 87(2)(b) and § 87(2)(b) "everyone get into building otherwise I am arresting all of you." When § 87(2)(b) and § 87(2)(b) entered the building, the officers took § 87(2)(b) to the corner of § 87(2)(b) and § 87(2)(b). When § 87(2)(b) asked the officers why they stopped him, PO Kurys told him that he was stopped because of the Leatherman tool that was on his person. PO Delamota wrote and issued § 87(2)(b) a summons (# § 87(2)(b)) for § 87(2)(b). The handcuffs were removed from § 87(2)(b)'s wrists and he was allowed to leave the scene.

Victim: § 87(2)(b)

§ 87(2)(b) provided a phone statement to the CCRB on November 22, 2010 (encl. 10.1-10.2). She corroborated that three male officers in plainclothes slammed § 87(2)(b) one of her neighbors, against the front of a black SUV that was parked in front of her building. She said that the officers handcuffed § 87(2)(b) and searched his hat, around his boots, and all of his pockets. When § 87(2)(b) asked the officers why they were arresting § 87(2)(b) a bald-headed Puerto Rican male with light skin, medium build, who was taller than her and who was either in his 20s or 30s (identified through investigation as PO Silverio) told her to "shut the fuck up; go to your house before I arrest you." She did not indicate whether or not the officer said this to her in Spanish or English, and neither was she asked. § 87(2)(b) one of § 87(2)(b)'s neighbors, was present for the incident. After the officers were done searching § 87(2)(b) they took him to the corner of § 87(2)(b) and § 87(2)(b) § 87(2)(b) later told her that he was issued a summons by the officers. On November 29, 2010, § 87(2)(b) told the assigned investigator that she was withdrawing her side of the complaint voluntarily, and was not coerced by any member of the CCRB or NYPD into doing so.

Attempts to contact victims

§ 87(2)(b) and § 87(2)(b) were identified as victims in this case by § 87(2)(b) who provided their contact information to the CCRB. Seven calls were made and two letters were mailed to § 87(2)(b) from November 15 to November 30, 2010. A voice message was not left on § 87(2)(b)'s cell phone because an automated message indicated that her mailbox had not been set up. There was no voicemail on her home number, so no message was left. None of the letters that were mailed to her were returned to the CCRB as undeliverable. Four calls were made and two letters were mailed to § 87(2)(b) from November 22 to 30, 2010. A voice message was not left on his home number because his answering machine did not come on and none of the letters that were mailed to him were returned to the CCRB as undeliverable.

NYPD Statements:

Subject Officer: PO SERGIO DELAMOTA

- *PO Sergio Delamota is a § 87(2)(b)-old Hispanic male who is a § 87(2)(b) and has black hair and black eyes.*
- *He was assigned to 9th Precinct's Conditions and to RMP # 9065 with PO Silverio and PO Kurys. He was dressed in plainclothes and worked from 9:30 a.m. to 6:05 p.m.*

Memo Book

His memo book noted that § 87(2)(b) was stopped at the incident location on the incident date and time. His memo book also noted that a criminal summons was issued to § 87(2)(b) by PO Silverio.

CCRB Testimony

PO Delamota was interviewed at the CCRB on March 3, 2011(encl. 11.1-11.7). On October 19, 2010, PO Delamota was standing on the § 87(2)(b) of the Tompkins Square Park in Manhattan when he saw § 87(2)(b) who was standing close to § 87(2)(b), repeatedly stand up from one of the park benches and sit back down on it. PO Delamota did not know where PO Silverio and PO Kurys were at this point because he and his partners were standing at separate points inside the park. At some point when § 87(2)(b) saw PO Delamota and his partners, he walked north-bound and then south-bound. § 87(2)(b) repeated this cycle again before he walked out of the park and headed in the direction of § 87(2)(b). PO Delamota noticed, as he and his partners followed § 87(2)(b) out of the park from their different vantage points, that § 87(2)(b) had a leather case clipped to his belt. PO Delamota signaled to PO Silverio, who was close to § 87(2)(b) to stop § 87(2)(b) because he suspected that § 87(2)(b) was in possession of an illegal weapon. By the time PO Delamota exited the park and rounded a corner, PO Silverio and PO Kurys were standing in front of § 87(2)(b) in Manhattan while § 87(2)(b) was standing on the steps to the apartment building, pressing the buzzers to the building. As PO Delamota approached the building, he heard § 87(2)(b) telling PO Silverio and PO Kurys, whose shields were visibly displayed around their necks, that he did not know who they were. § 87(2)(b) called out people's names as he continued to press some of the buzzers to the apartments in the building.

PO Delamota showed his shield, which was visibly displayed around his neck, to § 87(2)(b) and told § 87(2)(b) "Stop, police. Come down here." When § 87(2)(b) did not comply and kept pressing the buzzers to the building, PO Delamota and one of his partners (he did not recall which) grabbed § 87(2)(b)'s hands and walked § 87(2)(b) down the stairs. § 87(2)(b) yelled "let me go" as he was led down the stairs, but he did not resist physically. PO Delamota, PO Kurys and PO Silverio identified themselves as officers to § 87(2)(b). PO Delamota showed § 87(2)(b) his shield, memo book, and belt (which contained his mace, handcuffs, gun and expandable baton) while PO Kurys and PO Silverio lifted up their shirts and showed § 87(2)(b) their bullet proof vests. § 87(2)(b) however, continued to flail his arms and yell as he said that he did not know who

they were. PO Delamota told § 87(2)(b) to stop and that he wanted to ask him some questions. When § 87(2)(b) did not comply, one of the officers handcuffed § 87(2)(b) for the officers' safety because the officers did not know if § 87(2)(b) would use the object in the leather case against them. PO Delamota did not recall who between him and his partners handcuffed § 87(2)(b) PO Delamota or PO Kurys frisked § 87(2)(b) so they could retrieve the weapon that was on his person. The scope of the frisk was limited to the removal of the leather case that was attached to § 87(2)(b)'s belt, which contained a utility knife. § 87(2)(b) was not frisked anywhere else. PO Delamota did not know who between him and his partners took out the utility knife. PO Delamota did not recall if § 87(2)(b) was placed on the hood of a car. He did not take out his mace at any point and wave it in front of § 87(2)(b)'s face. PO Delamota did not know if any of his partners carried a can of mace on their person and he did not know if his partners took out their can of mace. At some point, more than three individuals and a child came out of the building, screaming. PO Delamota told these individuals to go back into the building. He did not tell anyone on the scene that if they did not go back into the building he would arrest them. He did not know if any of his partners made this comment to any of the civilians on the scene. PO Delamota did not recall if he or PO Silverio (who both speak Spanish) spoke to any civilians on the scene in Spanish. At the conclusion of the incident, PO Delamota and his partners led § 87(2)(b) to the corner of § 87(2)(b) and § 87(2)(b) where their unmarked police car was parked. PO Delamota told § 87(2)(b) to calm down and that the reason why they stopped him was because he had what appeared to be a knife clipped to his belt. The officers then checked to see if § 87(2)(b) had a warrant. When the warrant search came back as negative, § 87(2)(b) was issued a summons by PO Silverio for § 87(2)(b).

Subject Officer: PO FRANK KURYS

- PO Frank Kurys is a § 87(2)(b)-old white male who is § 87(2)(b) and has a bald head and hazel eyes.
- He was assigned to 9th Precinct's Conditions and to RMP # 9065 with PO Silverio and PO Delamota. He was dressed in plainclothes and worked from 9:30 a.m. to 6:05 p.m.

Memo Book

His memo book indicated that on the incident date, time and location, § 87(2)(b) was issued a § 87(2)(b) summons.

CCRB Testimony

PO Kurys was interviewed at the CCRB on March 3, 2011 (encl. 12.1-12.6). § 87(2)(g)

§ 87(2)(g) PO Kurys confirmed that he and his partners followed § 87(2)(b) out of the park when they saw what appeared to be a knife strapped to § 87(2)(b)'s waistband. PO Kurys corroborated PO Delamota's testimony regarding § 87(2)(b)'s behavior in the park. He also confirmed that when he and PO Silverio told § 87(2)(b) to stop as he walked to the front of § 87(2)(b) in Manhattan, § 87(2)(b) did not comply. § 87(2)(b) pressed the buzzers to the apartments in the building. PO Kurys told § 87(2)(b) to stop pressing the buzzers about ten times before he eventually complied. PO Kurys did not indicate nor was he asked if he or any of the other officers physically escorted § 87(2)(b) from the front of the apartment building to a vehicle that was parked in front of the incident location. § 87(2)(g)

At some point, § 87(2)(b) was handcuffed by PO Silverio or PO Delamota for the officers' safety because he was not complying with the officers' orders; and he kept flailing his hands,

moving from side to side and continued to press the buzzers to the apartments in the building. § 87(2)(b) was frisked, but he did not know who between him and his partners frisked § 87(2)(b). PO Kurys did not search § 87(2)(b) and he did not see any of his partners doing this. PO Kurys did not tell anyone to get back into the building or they would be arrested, and he did not hear his partners make this comment to anyone. PO Kurys took out the can of mace that was attached to his waist belt because § 87(2)(b) was not cooperating. PO Kurys did not see any of partners take out their can of mace. At the conclusion of the incident, the officers led § 87(2)(b) to the corner, where PO Silverio issued § 87(2)(b) a summons for § 87(2)(b).

Subject Officer: PO DANIEL SILVERIO

- PO Daniel Silverio is a § 87(2)(b)-old Hispanic male who § 87(2)(b) and has black hair and brown eyes.
- He was assigned to the 9th Precinct's Conditions and to RMP # 9065 with PO Kurys and PO Delamota. He was dressed in plainclothes and worked from 9:30 a.m. to 6:05 p.m.

Stop, Question & Frisk Report

This document (encl. 14.5) indicated that § 87(2)(b) was stopped for making furtive movements and for carrying objects in plain view commonly used in the commission of a crime. It also indicated that § 87(2)(b) was searched for being apprehensive, and frisked for furtive movements and for refusing to comply with officers' directions.

Summons

§ 87(2)(a) 160.50

CCRB Testimony

PO Silverio was interviewed at the CCRB on March 9, 2011 (encl. 13.1-13.7). He had no relevant entries in his memo book. He § 87(2)(g) stated he observed § 87(2)(b) standing in the dog area of the Tompkins Square Park, a drug prone location, without a dog and without doing anything. He and his partners decided to stop § 87(2)(b) for these reasons and because he had what appeared to be an exposed Gerber (a multi-task tool) attached to his belt. PO Silverio and his partners, all of whom had their shields displayed around their necks, followed § 87(2)(b) when he exited the park and headed towards § 87(2)(b) in Manhattan. PO Silverio told § 87(2)(b) twice "Police. Don't move." § 87(2)(b) looked back, at some point, but he continued to walk in the direction of the apartment building. When § 87(2)(b) entered the building and was about to close the front door behind him, PO Silverio put his foot in the door, grabbed one of § 87(2)(b)'s arms, and identified himself and his partners as police officers. § 87(2)(b) removed his arm away from PO Silverio and said "don't rob me; I don't have any money." PO Silverio told § 87(2)(b) that he was an officer. PO Silverio, PO Kurys and PO Delamota showed their shields to § 87(2)(b) when he asked to see their shield. § 87(2)(b) yelled that "people get robbed with fake shields all the time." He also cursed at the officers as he said something to the effect of "you fucking cops you have nothing better to do than to harass me." When PO Silverio reached for the item that appeared to be a Gerber, which was attached to § 87(2)(b)'s belt, § 87(2)(b) moved away from him. PO Silverio eventually removed the object that was attached to § 87(2)(b)'s belt when § 87(2)(b) stopped moving around. PO Silverio discovered that the object, which he thought was a gravity knife, was actually a Gerber. PO Silverio and PO Kurys led § 87(2)(b) to a car that was parked in front of the building.

PO Silverio noticed a big bulge in one of § 87(2)(b)'s back pockets as he led § 87(2)(b) to

the car. So he asked § 87(2)(b) if he had any weapons in his back pocket and § 87(2)(b) said he did not have anything in his pocket. When PO Silverio told him that he needs to check his back pockets, § 87(2)(b) said the only thing in his pocket was his wallet. PO Silverio asked § 87(2)(b) about seven to eight times for his identification, but § 87(2)(b) refused to provide his identification each time. PO Kurys and PO Delamota also asked § 87(2)(b) for identification, but § 87(2)(b) refused to provide them with his identification. When PO Kurys and PO Delamota tried to reach for § 87(2)(b)'s wallet, § 87(2)(b) escaped from these officers' grip and kept moving around, flailing his arms and turning away from these officers each time they reached for his wallet. § 87(2)(b) also ran around the car, but he later threw his wallet on top of the car's hood. PO Silverio picked up § 87(2)(b)'s wallet, went through it, and took out § 87(2)(b)'s identification while his partners spoke to § 87(2)(b).

At some point, PO Silverio and his partners made § 87(2)(b) place his hands on the hood of the car so they could frisk him. PO Silverio patted § 87(2)(b) around his arm, waistband, ankles and inner thighs, but he did not enter any of § 87(2)(b)'s pockets. PO Silverio believes that he was the only one who frisked § 87(2)(b). PO Silverio denied searching § 87(2)(b) and said that he usually checks both the "frisk" and "search" check boxes on the stop and frisk report even when he did not search an individual. PO Silverio did not take out his can of mace. He also did not see PO Kurys and PO Delamota take out their can of mace and wave it in front of § 87(2)(b). At some point, two of § 87(2)(b)'s female relatives exited from the building and called the officers "racist" and "fucking pigs." PO Silverio and PO Delamota told the females in Spanish the reason why they stopped § 87(2)(b). After which, PO Silverio told the females to go back into their apartment building more than ten times. When the females did not comply, PO Silverio told them that they could be arrested for OGA if they did not return back into the building because they were approaching him and his partners and preventing them from doing their job. The females then returned into the building and PO Silverio and his partners moved § 87(2)(b) to a street corner. PO Kurys and PO Delamota told § 87(2)(b) the reason why they stopped him while PO Silverio wrote up a summons for him. PO Silverio issued § 87(2)(b) a summons for disorderly conduct because he refused to comply with a lawful order to provide his identification and to come with them.

Disposition of Summons

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 12, 2011 with regard to the incident (encl. 16.1).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b)

Subject Officers CCRB History

- PO Frank Kurys has been a member of the service for five years and has no substantiated CCRB allegations against him. (encl. 2.1).
- PO Sergio Delamota has been a member of the service for four years and has no substantiated CCRB allegations against him. (encl. 3.1).
- PO Daniel Silverio has been a member of the service for four years and has no substantiated CCRB allegations against him (encl. 4.1).

Conclusions and Recommendations

Identification of Subject Officers

PO Kurys, PO Delamota and PO Silverio acknowledged that they interacted with § 87(2)(b) on the incident date, and police documents also confirmed this.

§ 87(2)(g)

§ 87(2)(b) alleged that a black male plainclothes officer threatened to arrest him and was one of the officers that stopped him on the incident date. He also alleged that a black male officer threatened to arrest § 87(2)(b) and § 87(2)(b). Although, PO Delamota is a Hispanic male officer and none of the officers on the scene is described through police documents as a black male officer, § 87(2)(g)

§ 87(2)(b) alleged that a bald-headed Puerto Rican male with light skin, medium build, who was taller than her and who was either in his 20s or 30s threatened to arrest her.

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: PO Frank Kurys stopped § 87(2)(b)

Allegation B – Force: PO Sergio Delamota stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped by PO Kury and PO Delamota. PO Kury and PO Delamota said that they decided to stop § 87(2)(b) because they saw what appeared to be a knife/leatherman clipped to § 87(2)(b)'s belt. PO Silverio said he and his partners decided to stop § 87(2)(b) because he had a leatherman clipped to his belt and because he was standing in the dog part of the park without a dog. PO Kurys and PO Delamota did not indicate that § 87(2)(b) was standing in the dog part of the park nor did they indicate any other reason for stopping § 87(2)(b) besides the knife clipped to his belt. PO Kurys and PO Delamota indicated that their attention was drawn to § 87(2)(b) before they saw the leatherman that was clipped to his belt because he repeatedly stood and sat on the park benches, and because he walked back and forth in the park.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A** and **B** be closed as **unsubstantiated**.

Allegation C– Abuse of Authority: PO Frank Kurys threatened § 87(2)(b) **with the use of force.**

It is undisputed that PO Kurys took his can of mace out while he and PO Delamota were interacting with § 87(2)(b) § 87(2)(g)

§ 87(2)(g)
Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Allegation D– Abuse of Authority: PO Sergio Delamota searched § 87(2)(b)
§ 87(2)(b) alleged that a black male officer searched his pant pockets and removed all the items that were in it. He also alleged that a black male officer removed the Letterman that was in his cell phone pouch. § 87(2)(b) corroborated that § 87(2)(b) was searched by all the officers on the scene. PO Delamota said the leather case containing the knife was searched. PO Silverio said he checked the “search” box on the stop and frisk report even though § 87(2)(b) was not searched. § 87(2)(g)
As a result, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E– Abuse of Authority: PO Frank Kurys frisked § 87(2)(b)
According to Patrol Guide Section, 208-05, a frisk is permissible when an officer suspects that he or she is in danger of physical injury (encl. 1.2). § 87(2)(g)
Therefore, it is recommended that **Allegation E** be closed as **Exonerated**.

Allegation F – Abuse of Authority: PO Sergio Delamota threatened to arrest § 87(2)(b)
and § 87(2)(b)
§ 87(2)(g) it is recommended that **Allegation F** be closed as **victim unavailable**.

Allegation G – Abuse of Authority: PO Daniel Silverio threatened to arrest § 87(2)(b)
§ 87(2)(g), it is recommended that **Allegation G** be closed as **complaint withdrawn**.

Team: 4

Investigator: _____
Title/Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

